

HEADNOTE

“1. The legal interest required for the admissibility of intervention is present when the intervenor has a direct and present interest in the issuance of the order or decision requested by the supported party.

2. Such legal interest may be affirmed when the patent in suit has been contributed by the plaintiff to a patent pool, the intervenor was entrusted with the performance of the plaintiff's FRAND obligations and with the licensing of the portfolio including the patent in suit, and the defendant relies on the assertion that the opposing party has not fulfilled its FRAND obligations due to alleged deficiencies in the licensing offers of the intervenor.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 3 490 258 B1

METHOD AND RECORDING MEDIUM
STORING CODED IMAGE DATA

KEYWORDS

Litigation support

FRAND

Pool administrator

Legal interest

License offer deficiencies

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a method and recording medium storing coded image data. According to the headnotes of the decision, an intervenor in patent proceedings has legal standing to join a case when they have a direct and present interest in the outcome that the supported party is seeking. The court further clarified that such legal interest exists where a patent has been pooled by the plaintiff, the intervenor manages licensing of that portfolio on the plaintiff's behalf, and the defendant challenges whether the plaintiff has met its FRAND obligations by pointing to deficiencies in the intervenor's licensing offers.